

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL APPELLATE JURISDICTION)

Civil Rule No. 82(Con)(F) OF 2016

In the matter of:

An application under section 5 of the Limitation Act,
1908 for condonation of delay of 330 days.

In the matter of:

Ratan Sheikh @ Sikder and others.

.... Appellants-petitioners

-Versus-

Deputy Commissioner, Gopalganj and others

....Respondents-opposite-parties

Mr. Alok Kumar Bhowmik with
Mr. Mohammad Mostafezur Rahman Miah and
Ms. Faria Sultana, Advocates
... For the appellants-petitioners

Heard and Judgment on 03.11.2024.

Present:

Mr. Justice Md. Mozibur Rahman Miah

And

Mr. Justice Md. Bashir Ullah

At the instance of the plaintiffs-appellants-petitioners, this rule was issued calling upon the opposite-parties to show cause as to why the delay of 330 days in filing the appeal should not be condoned and/or such other or further order or orders be passed as to this court may seem fit and proper.

The present petitioners as appellants filed an appeal before this court challenging the judgment and decree dated 13.10.2014 passed by the learned Joint District Judge, 1st Court, Gopalganj in Title Suit No. 31 of 2011 dismissing the suit. But in preferring this appeal, the delay of 330 days have been caused. It has been stated in the application for condonation of delay that, due to the inadvertence of the learned Advocate for the appellants before the trial court who actually conducted the suit as well as the illness of the respective clerk engaged with that very learned Advocate, these appellants could not procure the certified copy of the impugned judgment and also had no knowledge about the judgment impugned in the appeal for which the above mentioned delay of 330 days have been caused which is totally unintentional and beyond the capacity of the appellants-petitioners and that delay may kindly be condoned.

On the contrary, Mr. Md. Quamruddin, the learned Assistant Attorney General appearing for the respondent-opposite-party no. 1 opposes the said contention and submits that, for the laches of the appellants, the above delay has been caused and the explanation so offered is not satisfactory and the rule is liable to be discharged.

We have considered the submission of the learned counsel for the appellants-petitioners and that of the learned Assistant Attorney General and perused the application in particular, the explanation so have been offered in paragraph 4 thereof. However, the explanation so offered is found to be reasonable and we are inclined to condone the delay of 330 days.

Accordingly, the delay of 330 days is hereby condoned.

Consequently, the rule is made absolute without any order as to cost.

The office is directed to register the appeal in accordance with law.